

PCU322981 BALES, JACQUELINE vs. SEQUOIA RIVER FRONT CABINS et al

County: tulare

Division: Civil Law and Motion

Department: 19

Hearing date: 2026-08-25

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories, Set One, (2) Special Interrogatories, Set One, and (3) Requests for Production of Documents; Sanctions

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Re: BALES, JACQUELINE vs. SEQUOIA RIVER FRONT CABINS et al

Case No.: PCU322981

Date: August 25, 2026

Time: 8:30 A.M.

Dept. 19-The Honorable Russell P. Burke

Motion: Defendant's Motions to Compel Initial Responses to (1) Form Interrogatories, Set One, (2) Special Interrogatories, Set One, and (3) Requests for Production of Documents; Sanctions

Tentative Ruling: (1) through (3): To grant the motions and order responses due no later than thirty (30) days after service of the notice of this ruling for this motion; to impose sanctions against Plaintiff and counsel of record, jointly and severally, in the amount of \$517.50; sanctions are due no later than thirty (30) days after service of the notice of this ruling for this motion; to order Defendant to give notice.

Facts

In this bed bug matter, Plaintiff sues for 1. Battery 2. Negligence 3. Premises Liability 4. Intentional Infliction of Emotional Distress 5. Fraudulent Concealment 6. Private Nuisance 7. Public Nuisance 8. Breach of Contract.

Defendants Sequoia River Front Cabins and A.F.T Property Investments, L.L.C, on March 30, 2026, electronically served (1) Form Interrogatories, Set One, (2) Special Interrogatories, Set One, and (3) Requests for Production of Documents on Plaintiff, via counsel.

Responses were due May 1, 2026.

Plaintiff's counsel sought, and received, multiple extensions to respond to the discovery. However, as of July 23, 2026, no responses had been received.

Defendants seeks to compel initial responses to the aforementioned discovery and for sanctions of \$735 per motion against Plaintiff and counsel of record, jointly and severally.

No opposition to the motions appears filed.

(1) and (2) Interrogatories

Based on Plaintiff's failure to respond to the first set of form and special interrogatories, the Court orders under, Code of Civil Procedure section 2030.290(a), that Plaintiff provide full and complete verified responses without objection to Defendant's first set of form interrogatories and first set of special interrogatories, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

(3) Requests for Production

Based on Plaintiff's failure to respond to the first set requests for production of documents, the Court orders under, Code of Civil Procedure section 2031.300(a) that Plaintiff provide full and complete verified responses without objection to Defendant's first set of requests for production of documents, within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

Sanctions

Plaintiff seeks sanctions in the amount of \$735 consisting of 3 hours at \$225 per hour and the \$60 filing fee for each motion. The Court notes there is no meet and confer requirement and all that is necessary to obtain the relief requested on this motion to compel initial responses is that the other party failed to respond within the designated time.

Under Code of Civil Procedure sections 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court imposes total sanctions against Plaintiff and counsel of record, jointly and severally, in the amount of \$517.50, consisting of 1.5 hours total for all three motions at the stated rate plus \$180 in filing fees. Sanctions are due within thirty (30) days after service of the notice of this ruling for this motion. Defendant shall give notice.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.